



POLICE DEPARTMENT

December 20, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Sebastian Danese
Tax Registry No. 944483
63 Precinct
Disciplinary Case No. 2010-3700

The above-named member of the Department appeared before me on November 13, 2013, charged with the following:

1. Said Police Officer Sebastian Danese, assigned to the 63rd Precinct, on or about and between July 7, 2008 and February 16, 2010, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer misrepresented serving in the military to members of service in his command, 63rd Precinct, causing the Department to send said Police Officer for a psychological evaluation and removal of said Police Officer's firearms upon learning that said Police Officer never served in the military.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED
CONDUCT

2. Said Police Officer Sebastian Danese, assigned as indicated above, on or about July 4, 2010, while on-duty, was off post without permission or police necessity, to wit: said Police Officer left his assigned traffic detail and entered the Brooklyn Family Day Concert.

P.G. 203-05, Page 1, Paragraph 2 – PERFORMANCE ON DUTY
P.G. 206-03, Page 1, Paragraph 1 VIOLATIONS SUBJECT TO COMMAND
DISCIPLINE

3. Said Police Officer Sebastian Danese, assigned as indicated above, on or about July 4, 2010, while on-duty, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer took unauthorized police action by directing the music to be shut off prior to the conclusion of the concert at the Brooklyn Family Day Concert.

P.G. 203-10, Page 1, Paragraph 5- PUBLIC CONTACT – PROHIBITED
CONDUCT

4. Said Police Officer Sebastian Danese, assigned as indicated above, on or about July 4, 2010, while on-duty, failed to make entries in his Department issued memobook.

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS

5. Said Police Officer Sebastian Danese, assigned as indicated above, on or about November 1, 2010, wrongfully impeded a Department investigation by making false and/or misleading statements, to wit: said Police Officer stated that he did not direct the music to be shut off at the Brooklyn Family Day Concert prior to the conclusion of the concert knowing that such statement was not, in fact true.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED
CONDUCT

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Danese, a six-year member of the Department, is presently assigned to the 63 Precinct and is on full duty. He presently resides in [REDACTED] New York, and has been living there for about seven years, including during Hurricane Sandy, when he was a captain in the [REDACTED]

Although there was a mandatory order to evacuate the area during the storm, about 75%

of the population chose not to evacuate, erroneously believing that the hurricane would not be very serious. Respondent volunteered to stay and as the storm came on shore, he and others rescued as many people as they could, using boats with lifelines and trucks. They rescued "41 people the night of the storm" and afterwards, they had to "fight the fire that was in [REDACTED] which according to Respondent was the "largest residential fire in New York City history." Respondent explained that they "put out about 150 structural fires."

Upon returning to work, Respondent was approached by the Deputy Commissioner of Public Information to speak with various news organizations, while representing the Department, about his experiences during Hurricane Sandy. He did so at events throughout the country and was asked by the Mayor's office to escort the Ambassador of Ireland. In addition to the commendations he received for his work during Hurricane Sandy, he received a commendation from State Assemblyman Golden for performing CPR and resuscitating a man who was having a heart attack, and he received a commendation from City Councilman Louis Felder for capturing people who were committing burglaries in the 63 Precinct. He was named "Cop of the Month" on at least two occasions, and he believed he received "two or three CO Commander's Days." During his six-year career with the Department, he has made 144 arrests.

On two occasions, he attempted to join the United States Armed Forces. On his first attempt, he was told that he could not join the Army because he was a probationary police officer at the Department, in that he recently joined the 63 Precinct. On his second attempt, he took the written Armed Forces Service Exams but because he had been in a

serious RMP accident and had sustained severe injuries to his head, back and eye, he was unable to join the Army due to medical reasons.

While assigned to the 63 Precinct, between July 7, 2008 and February 16, 2010, Respondent allowed other members of the Department to believe that he had served in the military. If directly asked had he served, he responded no, but rumors to the contrary spread and sometimes, Respondent "encouraged" the rumors. He "kind of enjoyed it," although he knew that it "was a mistake" and showed his "[p]oor judgment."

On July 4, 2010, Family Day Activities were taking place at Aviator's Field, formerly known as Floyd Bennett Field (hereinafter "the Field"), and Respondent was assigned to two posts: patrol, and providing meal relief for the foot posts on Flatbush Avenue by the Field. During his tour that day, Respondent left his post, entered the concert area, and approached a man, who may have been the sound engineer or the head of security, to learn "what the plan was when the concert was going to end." Respondent explained that he and Police Officer (James) Mormile had observed people becoming upset when attempting to leave the concert area because the concert coordinator was making them walk to the end of the Field by the bus stop rather than letting them out through the gates. As a result, many fights ensued. He entered the concert area intending to speak with the head of security about "what would happen at the end of the concert when you had 5,000 people that were rushing the gates and see if he was going to let them through or not."

Respondent failed to make an entry in his Activity Log that he left his post. He explained that he left his Activity Log in an RMP, which was subsequently taken by his supervisor, Sergeant Campbell.

On or about November, 2010, Respondent was questioned about the July 4, 2010 incident in his official Department interview, and when he was asked if he had ordered anyone to shut down the concert, his response was less than clear.

On cross-examination, Respondent admitted that he was flattered by members of the Department assuming he had been in the military for several years before joining the Department, that he allowed it to go "too far," and that he used poor judgment in doing so. There came a time when his firearm was removed by Captain (Patricia) MacDonald, the 63 Precinct Executive Officer, and he underwent a psychological evaluation with Dr. Herbosch. Respondent testified that he told MacDonald that he had never served in the military and that he had been a stay-at-home father before he joined the Department.

On July 4, 2010, Respondent started his tour at 7:05 a.m. The first half of his tour was patrol and the second half was a traffic detail for Flatbush Avenue due to a concert at the Field. For the second half of his tour, he was assigned to meal relief for the traffic post. During the traffic detail, without direction from a supervisor, he entered the concert area multiple times on his own. He left his post because the concert was a ten-hour event, during which time people were trying to leave, and were prevented from doing so, through the large gate at the Field by security; loud arguments ensued, so Respondent entered the concert area to defuse the situation.

Respondent pled guilty to shutting down the concert area and he did not have any specific reason for doing so. At the end of the concert, people were very upset. Respondent testified that he remembered speaking with a supervisor, Sergeant (James) Cantore, at the end of the concert, about what had happened, and "it was decided that

myself [Respondent] and PO Mormile shut down the concert.” Respondent believed that Cantore blamed him.

Four months after the concert, at his official Department interview, Respondent denied that he told anyone to stop the concert at 11:00 p.m. Respondent admitted that he lied at his official Department interview when he said that he did not direct the music to be turned off on the night of the incident.

Upon questioning by the Court, Respondent testified that he was assigned the traffic detail on Flatbush Avenue by the middle entrance of the Field, where there is a gate to enter the Field. The concert was on the other side of the gate. Respondent was not assigned to monitor the traffic in and out of the Field; he was assigned to monitor the traffic on Flatbush Avenue.

Respondent admitted that he left his post to go into the concert area because there were a number of disagreements between the concert attendees and concert security. Respondent admitted that he never radioed for a supervisor and instead, he ended the concert.

Respondent admitted that the first time he left his post to enter the concert area, he did not have permission to do so. He spoke with “regular security guards at the gate.” Before he entered the concert area a second time, he spoke with Cantore and explained his concerns about the arguments at the gate and “what would happen at the end of the concert.” He asked if he “could work something out with security.” Cantore said “do whatever we had to do.”

About half an hour passed between the first and second time Respondent and Mormile entered the concert area. The second time, Respondent spoke with the head of

security who said that the concert attendees “would be allowed to use the gate” when they were leaving. Respondent exited the concert area and returned to his post.

About an hour later, at about 8:30 p.m., Respondent entered the concert area, without permission, for a third time. A group of people were agitated because they were not allowed to leave the Field at the gate, which had been closed by security. The situation was resolved and security was convinced to let the people leave at the gate. Respondent returned to his post.

About an hour later, at about 9:30 to 10:00 p.m., Respondent again entered the concert area, resolved the situation with the gate and returned to his post. Again, at about 10:45 to 11:00 p.m., Respondent entered the concert area and spoke with the head of security about making certain the gate would be open at the end of the concert so that people would be able to exit using that route.

At about 11:00 p.m., Respondent entered the concert area for one last time. Although the concert was supposed to end at 11:00 p.m., the sound engineer said that he had received permission from the venue to continue and “for the main act to go onstage for 15 minutes.” When asked if he directed the music to be shut off prior to the conclusion of the concert, Respondent testified, “I believe that’s the way the sound technician interpreted our actions, yes.” When asked “did you or did you not direct the music to be shut off,” Respondent testified, “I take any responsibility for it. I think that my actions were maybe vague or maybe I was yelling too loud, the way the concert ended. And it’s my fault.”

Respondent testified that he understood that honesty and reliability were fundamental to a police officer's testimony and he realized that his answers during his mitigation trial were not clear. He testified,

I've been unclear because, to tell the truth, I've been dealing with this for three years and I just want this to end. I just want to enter a guilty plea and just move on with my life. So if you wanted me to admit killing JFK, I would. I just want to go about my career.

DISCUSSION

Respondent has pled guilty to all of the charges in this case but some discussion is necessary with regard to Specification No. 1. Respondent is charged under that specification with misrepresenting "serving in the military to members of service in his command, 63rd Precinct, causing the Department to send said Police Officer for a psychological evaluation and removal of said Police Officer's firearms upon learning that said Police Officer never served in the military." Because the wording of this specification can be misleading, some discussion is important.

The Department has a right and a responsibility to remove an officer's firearms if it believes it has a reason to do so. Similarly, the Department has a right and responsibility to send a member of the service for a psychological evaluation if it believes it has a reason to do so. The conduct that causes a supervisor to remove an officer's weapon or to send a member of service for psychological evaluation may or may not involve misconduct. It must be absolutely clear that there is no stigma attached to sending a member of the service for psychological services.

In assessing this specification, the issue is the conduct of Respondent in misleading his fellow officers into believing he was in the military. The fact that a

supervisor in this Department removed Respondent's firearm or sent Respondent for a psychological examination is not a matter for disciplinary consideration as it relates to Respondent.

This brings us to the second issue with this specification, which relates to the level of misconduct involved in allowing other members of the service to believe something which is false. There is no evidence to indicate that Respondent sought or obtained any benefit for having served in the military. There is no evidence to indicate that his claimed military service affected his work performance in any way. When confronted by a supervisor he acknowledged that he had no military service. Whatever level of misconduct this might constitute, in and of itself, is minor. What this can be considered for is Respondent's respect for the truth, something that will be discussed more fully in relation to the other specifications in this case.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 9, 2007. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The most substantial misconduct is contained in three specifications dealing with the events of July 4, and November 1, 2010.

On July 4, 2010, Respondent was on duty and assigned to a traffic post on Flatbush Avenue outside Floyd Bennett Field in Brooklyn. Respondent has pled guilty to

leaving his assigned traffic post “without permission or police necessity” and entering the Brooklyn Family Day Concert which was going on inside the Field (Specification No. 2). He further pled guilty to taking “unauthorized police action by directing the music to be shut off prior to the conclusion of the concert at the Brooklyn Family Day Concert” (Specification No. 3).

On November 1, 2010, Respondent was subject to an official Department interview about the events of July 4, 2010. With respect to that official Department interview, Respondent has pled guilty to “impeding” a Department investigation by “making false and/or misleading statements,” by claiming “that he did not direct the music to be shut off at the Brooklyn Family Day Concert prior to the conclusion of the concert knowing that such statement was not, in fact true” (Specification No. 5).¹

Respondent’s testimony about the events of that evening contradicted all of these pleas. He testified, for instance, that there was a police reason to leave his traffic post because concert security was making people walk to a faraway exit and this was causing crowd control problems. He said he had permission from his supervising sergeant. He denied ordering the music to be turned off.

During Respondent’s testimony I suggested that the proceeding be turned into a full trial but neither side moved to do so and Respondent insisted that I accept his plea. Indeed Respondent made the following incredible statement:

...I just want this to end. I just want to enter a guilty plea and just move on with my life. So if you wanted me to admit to killing JFK, I would. I just want to go about my career.

¹ Respondent also pled guilty to Specification No. 1, which I have previously discussed, and Specification No. 4, which involves his failure to make notations in his Activity Log.

Because Respondent has insisted that I accept his plea, I do. But in assessing his testimony, I find that what he offered were a series of rationalizations for his unauthorized and inappropriate conduct. Consequently, I find that Respondent is in fact guilty.

The single most important issue in this case is Respondent's credibility; that is whether anything Respondent says can be believed. That issue was not resolved by Respondent's testimony in this matter, indeed Respondent's testimony reignited the issue. As such, this case poses a difficult challenge both for the Department and for Respondent. Indeed, it is on this issue, Respondent's reliability and believability, that Specification No. 1 will be considered. Respondent, in his mitigating effort, pointed to his public service in the aftermath of Hurricane Sandy. This certainly is something to consider. But here again, as my dialogue with Respondent at the end of his testimony pointed out, we do not know if his achievements are real or the result of the kind of puffery he is apparently very good at.

To the extent that I accept that Respondent's work in the aftermath of Sandy is true, it demonstrates that he has excelled in one aspect of police work.

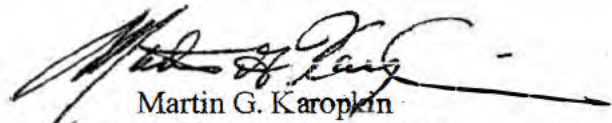
But police work is complex and multifaceted. An equally important component of police work is the ability to communicate effectively and honestly. It is this critical aspect of police work that this Respondent has brought into question by the conduct which led to the instant charges and in his testimony at this proceeding.

The Department is recommending a penalty involving the loss of 40 vacation days and one year dismissal probation. There is no question that a period of monitoring is absolutely necessary to allow the Department to review the quality of his work and the

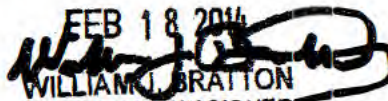
reliability of his representations. I also believe that there is evidence that Respondent has engaged in some good acts such as giving a man CPR. I also checked the number of arrests he claimed to have made and Respondent did not exaggerate.² Some of his work, I believe, reflects a genuine cause to mitigate part of the penalty. On the other hand, his conduct and his testimony at this proceeding are extremely troubling. Thus, at a minimum, I accept the Department's recommendation.

Based on the above analysis, I recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at anytime without further proceedings. In addition, Respondent should forfeit forty (40) vacation days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED

FEB 18 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER

² In his testimony, Respondent claimed to have made 144 arrests. Department records indicate that he made 146 arrests.

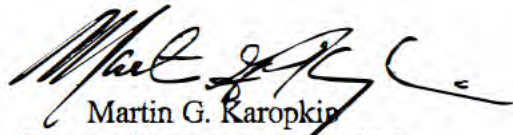
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SEBASTIAN DANESE
TAX REGISTRY NO. 944483
DISCIPLINARY CASE NO. 2010 3700

In 2012, Respondent received an overall rating of 4.0 "Highly Competent" on his annual performance evaluation. He was rated 3.5 "Highly Competent/Competent" in 2010 and 2011. He has been awarded two medals for Excellent Police Duty. In his six years of service, he has effected 146 arrests. [REDACTED]

[REDACTED] In February 2011, he was placed on Level II Discipline Monitoring. He has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner Trials